

HOUSE BILL 2627

By Darby

AN ACT to amend the private acts of Weakley County, relative to the county highway department.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. For the purpose of providing an efficient system of roads, highways, and bridges and the building, construction, reconstruction, maintenance, and repair of roads, highways, and bridges in Weakley County, Tennessee, the office of County Highway Supervisor is hereby created. The County Highway Supervisor shall be deemed to be the chief administrative officer of the highway department, which builds and maintains the roads of the county in accordance with the County Uniform Highway Law, codified at Tennessee Code Annotated, Title 54, Chapter 7, Parts 1 and 2, as amended from time to time.

The County Highway Supervisor in office on the effective date of this act shall continue to serve until the expiration of the supervisor's term. At the August election in 2026, and every four (4) years thereafter, the County Highway Supervisor shall be elected by a majority of the qualified voters of Weakley County. The County Highway Supervisor shall receive a salary as provided under general law.

SECTION 2. To qualify for the office of County Highway Supervisor, a person shall be a citizen of the United States, a resident of Tennessee and Weakley County for at least two (2) years, and not less than twenty-five (25) years of age. A person shall also be a graduate of an accredited school of engineering, with at least two (2) years' experience in highway construction or maintenance or a related field and/or be licensed to practice engineering in Tennessee; or shall have had at least four (4) years' experience in a supervisory capacity in highway construction or maintenance; or a combination of education and experience equivalent to either of the above, as evidenced by affidavits filed in accordance with general law with respect to the popular election of the chief administrative officer of the county highway department, and filed

with the highway committee of the county legislative body when the county legislative body is filling a vacancy in the office of County Highway Supervisor. In no event shall the County Highway Supervisor have less than a high school education or a general equivalency diploma (GED).

SECTION 3. If any provision of this act or the application thereof to any person or circumstance is held invalid, such invalidity shall not affect other provisions or applications of the act which can be given effect without the invalid provision or application, and to that end, the provisions of this act are declared to be severable.

SECTION 4. This act has no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of Weakley County. Its approval or nonapproval must be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 5. For the purpose of approving or rejecting the provisions of this act, it is effective upon becoming a law, the public welfare requiring it. For all other purposes, it is effective as provided in Section 4.